THE STATE
versus
VICTOR MAZHAMBE
and
ABSEY BIZEK KAHURUVA
and
BARNABAS MURENZA

HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE, 27 March 2026

Assessors: Mr *Chimonyo*
Mrs *Maoneke*

Sentencing Judgement

A Masamha, for the State
L. Rubaya, for the 1st accused
L. Nyamudeza, for the 2nd accused
J. Mawere, for the 3rd accused

MANDAZA J: The accused persons appeared before the Court charged with murder, as defined under section 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. It is alleged that on the 22nd of September 2024, at approximately 0005 hours, at Manyozo Village, Chief Rusambo, Rushinga, the accused persons, acting jointly or individually, unlawfully and with intent to kill or alternatively, realising that there was a real risk or possibility that their conduct might cause death yet nonetheless persisting in such conduct struck one Grace Murenza on the head with an axe and severed her neck, thereby occasioning injuries from which the said Grace Murenza subsequently died. The State further alleged that the 3rd accused person orchestrated the killing of the deceased for ritual purposes, seeking to utilise her blood as a charm to bolster his business interests, and to that

end engaged the 1st accused to carry out the killing, the two having reached an agreement for a fee of USD$2,500 as remuneration for the said service. The two further agreed to enlist the participation of the deceased accused, David Meja, who was the deceased's former husband, to lure the deceased to a secluded location. It is pertinent to note that the deceased accused passed away whilst in remand custody.

In furtherance of their plan, the deceased accused enlisted the services of the second accused. On the 21st of September 2024, the deceased accused, the 1st accused, and the 2nd accused convened to strategise on the execution of their scheme. In accordance with the roles assumed, the deceased accused undertook to lure the deceased whilst the 1st and 2nd accused concealed themselves in a bedroom to which the deceased accused was to bring her. The deceased accused approached the deceased under the false pretext of retrieving his clothing and medication, which he claimed to have left in the third accused's bedroom the room in which they had previously cohabited. The deceased duly informed her boyfriend, Onisen Magora, that the deceased accused had come to collect his belongings, and she thereafter proceeded to hand them over to him. As the deceased unlocked the door, the first accused emerged from behind and struck her twice on the head with an axe, rendering her unconscious. While she lay in that state, the deceased accused proceeded to sever her head using the same axe. The trio then removed the deceased's head from the premises, leaving the torso inside the house, and notified the 3rd accused that the task had been accomplished. The third accused thereupon directed them to convey the head to a Zion Church Blair toilet, whereafter he followed and proceeded to collect blood from the severed wound. The head was subsequently discarded into the Blair toilet.

The following morning, the body of the deceased was discovered by her daughter, who confirmed that the head was missing. The torso and the head were subsequently recovered at separate locations and positively identified as belonging to the deceased, Grace Murenza.

The three accused persons pleaded not guilty to the charge but were convicted following a full trial.

The Law

Section 47(4) of the *Criminal Law (Codification and Reform) Act* [*Chapter 9:23*] provides that;

> "(4) A person convicted of murder shall be liable—

(*a*) subject to sections 337 and 338 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], to death, imprisonment for life or imprisonment for any definite period of not less than twenty years, if the crime was committed in aggravating circumstances as provided in subsection (2) or (3); or
(b) in any other case to imprisonment for any definite period."

The provision is clear and the court is aware of the abolition of the death sentence. In determining the sentence in murder cases the Court should first consider whether the offence was committed in aggravating circumstances or not. Section 47(2) of the *Criminal Law (Codification and Reform)* Act [*Chapter 9:23*] provided for the penalty of the crime of murder as follows:

"47(2) in determining an appropriate sentence to be imposed upon a person convicted of murder, and without limitation on any other factors or circumstances which a court may take into account, a court shall regard it as an aggravating circumstance if-
(a)the murder was committed by the accused in the course of, or in connection with, or as the result of, the commission of any one or more of the following crimes, or of any act constituting an essential element of any such crime (whether or not the accused was also charged with or convicted of such crime)—
(i) an act of insurgency, banditry, sabotage or terrorism; or
(ii) the rape or other sexual assault of the victim; or
(iii) kidnapping or illegal detention, robbery, hijacking, piracy or escaping from lawful custody; or
(iv)unlawful entry into a dwelling house, or malicious damage to property if the property in question was a dwelling house and the damage was effected by the use of fire or explosives; or
(b)the murder was one of two or more murders committed by the accused during the same episode, or was one of a series of two or more murders committed by the accused over any period of time; or
(c) the murder was preceded or accompanied by physical torture or mutilation inflicted by the accused on the victim; or
(d)the victim was murdered in a public place or in an aircraft, public passenger transport vehicle or vessel, railway car or other public conveyance by the use of means (such as fire, explosives or the indiscriminate firing of a weapon) that caused or involved a substantial risk of serious injury to bystanders."

Section 47(3) of the *Criminal Law (Codification and Reform) Act*:

"(3) A court may also, in the absence of other circumstances of a mitigating nature, or together with other circumstances of an aggravating nature, regard as an aggravating circumstance the fact that—
(a) the murder was premeditated; or
(b) the murder victim was a police officer or prison officer, a minor, or was pregnant, or was of or over the age of seventy years, or was physically disabled."

Aggravating circumstances are further prescribed in the table of presumptive penalties under the Criminal Procedure (Sentencing Guidelines) Regulations, 2023 (hereinafter referred to as the "Sentencing Guidelines"). From the foregoing provisions, it is evident that where a crime is committed in aggravating circumstances, the prescribed penalty is imprisonment for life or, in the alternative, a definite period of imprisonment of not less than 20 years.

Mitigating factors are not provided for under the Criminal Law (Codification and Reform) Act; however, they are enumerated in the Sentencing Guidelines as follows:

> "Whereby the deceased was the aggressor, was a participant in criminal conduct, high degree of provocation, the offender acted out of passion, attempt by the offender to give assistance or summon help after commission of offence."

None of the foregoing mitigating factors finds application in the present case, as the deceased was a seven-year-old child.

Aggravation

The State submitted that whosoever killed the deceased did so with a deliberate and determined intent to kill, as evidenced by the act of decapitation. The first and second accused persons made warned and cautioned statements which were subsequently confirmed before the court. Notably, no mention was made of any alleged assaults or threats to the magistrate at the time of confirmation. The court was accordingly urged to attach due weight to those statements. The State further submitted that the court ought to have regard to the detail and consistency of the said statements, which materially corroborated the accused persons' indications. The court was likewise urged to consider the indications made by the accused persons, which placed them at the scene of the offence. It was further submitted that the murder was committed in aggravating circumstances, having been perpetrated through the use of lethal weapons.

The court was urged to give due consideration to the fact that a human life was lost in circumstances that were entirely avoidable. The sanctity of human life demands constant and vigilant protection. Human life is a precious and sacred gift which no person is entitled to take. The accused persons placed nothing before the court by way of justification or explanation for the commission of the offence. There was no provocation, and the deceased had not wronged anyone. The accused persons deliberately sat down, planned, and executed

the offence with unmistakable premeditation. They set out with the express purpose of killing the deceased and carried out that purpose. The deceased endured a painful and gruesome death by reason of the manner in which she was killed, her body having been mutilated. The fact that the accused persons are first offenders and have suffered pre-trial incarceration is substantially eclipsed by the gravity and manner of the offence. They commenced their criminal enterprise at its most extreme. The deceased was 34 years of age, a mother of five children, and the sole breadwinner of her family. Her children have been irreparably deprived of maternal love and support, and the psychological impact of that deprivation cannot be overstated.

The State further submitted that the aggravating circumstances far outweigh any mitigatory factors. The offence was premeditated and deliberately planned. It was targeted at a vulnerable victim and executed in a particularly cruel manner, with the use of a dangerous weapon. The fact that the accused persons attended the deceased's funeral ought to be disregarded, as they had not yet been arrested at that time and their attendance cannot be regarded as a genuine expression of remorse. Their presence at the funeral is wholly overshadowed by the fact that they were themselves the perpetrators of the offence. It was further submitted that no distinction in punishment ought to be drawn between the accused persons, as contemplated under section 196A of the Criminal Law (Codification and Reform) Act. The court was also urged to depart from the presumptive penalty.

Mitigation

Accused 1

It was submitted on behalf of the applicant that he is 40 years of age, married, and the father of one child. He is a first offender. His level of formal education extends only to Grade 7, a circumstance which may have had a bearing on his appreciation and understanding of the gravity of his conduct. It was further submitted that the applicant is genuinely remorseful and has come to a full appreciation of the nature and extent of his wrongdoing. The court was accordingly urged to consider the minimum prescribed penalty. The applicant is a subsistence farmer of modest means. It was further represented that his uncle had been engaged to pay compensation to the family of the deceased; however, such compensation has not been paid to date.

Accused 2

It was submitted on behalf of the accused that he is a first offender and, at 25 years of age, a youthful offender. He is married with no children. The court was urged to take into account the period of pre-trial incarceration of one and a half years. It was further submitted that the accused attended the funeral of the deceased, which was indicative of remorse on his part. It was also submitted that the accused did not assume a leading role in the commission of the offence but acted under the influence of older accomplices. His participation was minimal, being limited to the handling of the deceased's head. He was neither involved in the planning and deliberations that preceded the offence nor did he take a leading role in the disposal of the deceased's head. The court was accordingly urged to lean towards the presumptive penalty.

Accused 3

The accused pleaded for leniency. It was submitted that he is a first offender, 43 years of age, married, and the father of five children. His degree of moral blameworthiness is minimal. The court was urged to take into account that he did not participate in the actual killing of the deceased and that he rendered assistance to the police in the course of their investigations. The court was accordingly urged to impose the minimum sentence prescribed under the Sentencing Guidelines.

The Sentence

It is within the Court's discretion to impose a fair sentence having due regard to both the mitigatory and aggravating factors. In *casu*, the Court has taken note that all three accused persons participated in the commission of the offence, each sharing in the common purpose and desired outcome. The attack was, in the Court's view, exceptionally brutal. The act of severing the deceased's head was macabre in the extreme. An innocent life was extinguished in the most barbaric of circumstances.

It is aggravating that the murder was perpetrated through the use of a weapon. In casu, the deceased was first struck on the head with an axe, whereafter her head was severed from her body. The medical report compiled by Dr. Robert Gillen concluded that the cause of death was brain laceration, skull vault fracture, and chop wounds, thereby confirming the allegations of the State.

The Court accordingly holds that the murder was committed in aggravating circumstances, in accordance with the dictates of the Sentencing Guidelines. It is trite that the court must determine whether or not a murder was committed in aggravating circumstances, as it is only where the offence was not so committed that the court is not bound by the

mandatory sentence. The court retains the latitude to identify such further circumstances as it may deem aggravatory, and it is equally trite that even a single aggravating factor suffices to sustain such a finding.

The deceased died a painful death. To compound matters, this was a premeditated murder in which she was deliberately lured to her death by David Meja, her former boyfriend, who approached her under the false pretext of retrieving his medication. David Meja subsequently died whilst in remand custody, thereby dying before justice could be visited upon him. The meticulous and calculated planning that involved all three accused persons is deserving of the strongest censure by any right-thinking member of society, and the Court regards such planning as a significant aggravating factor.

Upon the handing over of the deceased's head to the third accused, he proceeded to collect blood therefrom and instructed the others to dispose of the head in a Blair toilet, thereafter departing with a promise to remunerate the first accused for the service rendered. The disposal of the deceased's head in a Blair toilet was a deliberate attempt to conceal the offence. The head was fortuitously discovered by one Catherine Kapurura, a fellow villager, who had entered the Blair toilet for its ordinary purpose. The treatment of the deceased's head in such a manner constitutes inhuman and degrading conduct, and the Court holds this to be a further aggravating factor.

Throughout the proceedings, none of the three accused persons demonstrated any remorse. On the contrary, they were intent on misleading the Court and advanced a false narrative. The third accused, in particular, raised a defence of alibi which he was ultimately unable to sustain.

The sanctity of human life cannot be overstated. The courts bear an inherent duty to protect life and to visit appropriate punishment upon those who demonstrate a wanton disregard for it. See *S* v *Pedzisai* HMA 60/22. The degree of moral blameworthiness of the accused persons in the present case is exceedingly high.

The present case is substantially on all fours with *S* v *Tafadzwa Shamba and Another* 23-HH-396, in which the accused persons were convicted of killing Tapiwa Makore, a seven-year-old boy, for ritual purposes. The remains of the child were discovered the following morning at a villager's premises, being dragged by dogs. As in that case, the accused *in casu* killed the deceased for ritual purposes, the 3rd accused having sought to use her blood as a charm to enhance his business interests.

The Court has also taken into account, in the accused persons' favour, the period of pre-trial incarceration and the anxiety attendant upon having a charge of murder pending over one's head. See *S* v *Vambe and Another* HH254/16, in which the court recognised that a period of three years spent in suspense and anxiety is undoubtedly traumatic. These factors have been accorded due weight in the determination of an appropriate sentence.

Nonetheless, the Court must not lose sight of its paramount duty to protect human life. The right to life is constitutionally enshrined under s 48(1) of the Constitution. It is punishment, and not vengeance, that must prevail. Having regard to the totality of the circumstances and having found that the offence was committed in aggravating circumstances, both under the Criminal Law (Codification and Reform) Act and the Sentencing Guidelines; the Court is satisfied that a sentence of life imprisonment in respect of each accused person is not only warranted but imperative. Anything less would bring disrepute to the administration of justice.

The deceased was ruthlessly attacked. She was unarmed and wholly incapable of defending herself. The multiplicity of injuries sustained by her attests to the brutal and inhuman nature of the assault. An exemplary sentence is called for. It is high time that those in the business community disabuse themselves of the misguided belief that charms derived from human blood enhance commercial performance or bring prosperity. This country is home to thriving enterprises, among them Econet, Spar, Pick and Pay, Zimplats, and many others, all of which have achieved success through sound and modern business management, and not through the use of human body parts. The accused persons planned this crime together and pursued it to its conclusion. Each bears equal responsibility for its consequences and is accordingly liable to the same punishment.

In the premises, each accused person is hereby sentenced to life imprisonment.

MANDAZA J: .....

The National Prosecuting Authority, the State's legal practitioners
Rubaya and Chinuwo, First Accused's Legal Practitioners
Rujuwa Attorneys, Second Accused's Legal Practitioners
Gumbo and Associates, Third Accused's Legal Practitioners